

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TRACI PLAUT,

Petitioner

VS.

ZACHARY PLAUT,

Respondent

) Case Number: FDI-25-801768

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT, PROPERTY CONTROL, I REQUEST THAT OUR CHILD PRIMARILY RESIDE WITH ME IN SAN FRANCISCO WHERE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Traci Plaut (Mother) and Respondent Zachary Plaut (Father). They share one minor child: Zarah Marie Plaut (DOB: 07/12/12).
- 2) On March 30, 2026, Mother filed an ex parte Request for Order seeking pendente lite orders regarding child custody, visitation, guideline spousal support, guideline child support, property control of the 2632 26th Avenue, San Francisco home, and the minor child's residence (the minor child be permitted to reside with her in San Francisco). Mother concurrently filed an Income and Expense Declaration (file dated March 27, 2026). The Court denied Mother's request for emergency relief and set the matter for hearing on May 4, 2026 (on the Court's Readiness calendar).

- 1 3) On April 24, 2026, Father filed a Responsive Declaration wherein he asks this Court to order a
2 child custody evaluation and equal parenting plan. Father does not oppose Mother's requests for
3 support and property control; however, Father requests Mother be ordered to pay all her own
4 expenses as well as the mortgage and carrying costs on the property. Father states he is currently
5 paying all expenses. Father asks the Court to impute Mother at her previous salary as a researcher
6 at UCSF or minimum wage. Father concurrently filed an Income and Expense Declaration (file
7 dated April 24, 2026).
- 8 4) On April 29, 2026, Father filed "Respondent's Evidentiary Objections to Petitioner's Declaration
9 and Documents in Support of Her Request for Order and Additional Documents," which has been
10 read and considered by the Court.
- 11 5) On June 17, 2026, Father filed a "Respondent's Supplemental Responsive Declaration to
12 Petitioner's Request for Order," which has been read and considered by the Court. Father
13 attached a proposed XSpouse report to this pleading.
- 14 6) On June 25, 2026, the Court heard the matter and issued orders (see FOAH filed 07/17/26) and
15 set a review hearing on August 20, 2026 on the sole issue of "status of Family Code section 3111
16 evaluation."

17 **B. Findings and Order**

- 18 1) **The parties are ordered to appear.** As of August 15, 2026, the Court has not received update
19 or supplemental declarations from either party as to the status of the Family Code section 3111
20 evaluation. Without any input from the parties, the Court has no basis on which to issue a
21 Tentative Ruling. **The parties shall be prepared to inform the Court of the status of the**
22 **evaluation and provide argument regarding any additional requests of the Court.**
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